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February 25, 2025

By: Murdock

An Act relating to schools; requiring school district boards of education and charter school governing bodies to request a national criminal history record check for volunteers beginning in certain school year; defining term; directing the Oklahoma State Bureau of Investigation to obtain fingerprints and require payment of certain fee; providing for deposit of fee into certain fund; allowing reimbursement of certain search cost; requiring school district boards of education and charter school governing bodies to publish certain notice on certain websites; providing certain exceptions; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 5-142.2 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Except as otherwise provided in subsection D of this section, beginning with the 2025-2026 school year, a school district board of education and the governing body of a charter school shall request that the Oklahoma State Bureau of Investigation (OSBI) provide a national criminal history record check for a volunteer prior to the individual volunteering at a school district or charter

1 school site. For the purposes of this section, "national criminal
2 history record check" shall have the same meaning as provided for in
3 Section 150.9 of Title 74 of the Oklahoma Statutes. OSBI shall
4 obtain fingerprints of the volunteer and require that the person pay
5 a search fee not to exceed Fifty Dollars (\$50.00) or the cost of the
6 search, whichever is the lesser amount. The fee shall be deposited
7 into the OSBI Revolving Fund created pursuant to Section 150.19a of
8 Title 74 of the Oklahoma Statutes.

9 B. A school district board of education or the governing body
10 of a charter school may reimburse volunteers for the cost of the
11 search required by subsection A of this section.

12 C. Each school district board of education and governing body
13 of a charter school shall publish on its website notice of the
14 national criminal history record check required by subsection A of
15 this section and whether the school district or charter school
16 provides reimbursement for the cost of the search, as allowed by
17 subsection B of this section.

18 D. School district or charter school volunteers who meet the
19 criteria provided for in subsection F of Section 5-142 of Title 70
20 of the Oklahoma Statutes may not be required to have a national
21 criminal history record check.

22 SECTION 2. This act shall become effective July 1, 2025.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health, or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
4 February 25, 2025 - DO PASS
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